

**PROPERTY MANAGEMENT AGREEMENT FOR UNITS AT
THE CLUB AT BRICKELL BAY PLAZA CONDOMINIUM ASSOCIATION, INC.**

THIS AGREEMENT MUST BE SUBMITTED TO THE ASSOCIATION IF THE SHORT-TERM RENTAL OF A UNIT IS BEING MANAGED BY A PROPERTY MANAGER ON BEHALF OF A UNIT OWNER. A UNIT MAY NOT BE RENTED ON A SHORT TERM BASIS BY A PROPERTY MANAGER WITHOUT THE FULL EXECUTION OF THIS AGREEMENT.

This PROPERTY MANAGEMENT AGREEMENT (hereinafter the "Agreement") is made on 02/27/2026, by and between "Unit Owner" Name: Wilson Cardona and "Property Manager" Name: WHOST individually referred to as "Party" and collectively as "Parties") for purposes of managing the short-term rental of Unit 1616 at The Club at Brickell Bay Plaza Condominium ("Condominium").

A. WHEREAS, Unit Owner owns Unit 1616 at the Condominium (hereinafter the "Unit") located at 1200 Brickell Bay Drive, Miami, Florida 3313 and the Condominium is operated and controlled by The Club at Brickell Bay Plaza Condominium Association, Inc. ("Association").

B. WHEREAS, the short-term rental of a unit is defined as renting or leasing a unit at the Condominium for a period of six (6) months or less and the Unit Owner desires to employ Property Manager in the short-term rental of the Unit by turning over to Property Manager the operation, direction, management and supervision of the Unit for such short-term rental purposes, subject to and in accordance with the terms and conditions set forth in this Agreement, and Property Manager desires to assume such duties upon the terms and conditions set forth in this Agreement.

AGREEMENT

NOW, THEREFORE, in consideration of the premises and the mutual promises and covenants herein contained, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Unit Owner and Property Manager agree as follows:

1. RECITALS: The foregoing recitals are true and correct and are incorporated herein by this reference.
2. APPOINTMENT AND DUTIES OF PROPERTY MANAGER: Unit Owner hereby grants to Property Manager, the sole and exclusive right to manage and operate the Unit for short-term rental purposes, subject to the terms of this Agreement. The Property Manager shall perform and comply with the following requirements:
 - a. Comply with the Association's Declaration of Condominium, By-Laws and the Rules and Regulations, as amended from time to time.
 - b. Comply with any and all local ordinances, state and Federal law including, but not limited to zoning, occupancy, maintenance, health, safety, and operation of the rental enterprise.
 - c. Secure all permits and licensing required by state and local governments to operate rental operations.
 - d. Register all short term renters in accordance with the Association's requirements.
 - e. Property Manager shall not conduct him/her/they self in a manner that creates a nuisance or interferes with the use or peaceful enjoyment of the amenities, the common elements and neighboring units.
3. TERMINATION: This Agreement may be terminated by either Party or by the Association at any time with or without cause with 30 days' notice. Upon termination of this Agreement, the Property Manager's privileges to access the Condominium Property and the Unit for purposes of managing or renting the Unit shall be cancelled and shall be of no force or effect.
4. INSURANCE AND INDEMNIFICATION: At all times during the term of this Agreement, the Unit Owner and the Property Manager shall, at no expense to the Association, procure and maintain casualty insurance, comprehensive general liability insurance and other insurance coverages as required by the Association. Certificates of all policies evidencing such insurance shall be delivered to the Association by the Parties prior to advertising the unit for rent on a short-term basis and at least 10 days before access to the Condominium property by Manger. All policies of insurance provided for herein shall name the Association as an insured thereunder with a waiver of subrogation.

Furthermore, Unit Owner and Property Manager agree, to the fullest extent permitted by law, to indemnify, save, defend and hold the Association harmless from and against (i) any and all liabilities for any injury(s), monetary damage(s), or accident(s) to any guest, lessee, or invitee of any such member, or to any third person, and for any loss, expense damage to property, arising out of or in the course of the performance of its duties as Property Manager under this Agreement or arising out of the acts or omission of the short-term renter(s); (ii) for any error or judgment or for any mistake of fact of law or for anything which it may do or refrain from doing hereinafter in regard to the Unit under this Agreement.

5. TOURIST DEVELOPMENT TAXES. The lease of a Unit for a term of six (6) months or less is subject to a tourist development tax assessed pursuant to Section 125.0104, Florida Statutes. In order to secure the payment of such taxes, a Unit Owner or Property Manager leasing a unit on a short term basis is required to utilizing an online short term rental booking or vacation platform (i.e., Airbnb.com, VRBO.com, etc.) that collects these taxes on behalf of Unit Owner or Property Manager and remits them to the state. A Unit Owner leasing his or her Unit for a term of six (6) months or less agrees, and shall be deemed to have agreed, for such Unit Owner, and his or her heirs, personal representatives, successors and assigns, as appropriate, to hold the Association, its agents and all other Unit Owners harmless from and to indemnify them for any and all costs, claims, damages, expenses or liabilities whatsoever, arising out of the failure of such Unit Owner to pay the tourist development tax and/or any other tax or surcharge imposed by the State of Florida, Miami-Dade County and the City of Miami with respect to rental payments or other charges under the lease, and such Unit Owner shall be solely responsible for and shall pay to the applicable taxing authority, prior to delinquency, the tourist development tax and/or any other tax or surcharge due with respect to rental payments or other charges under the lease.

6. LIABILITY FOR RENTER/TENANT'S ACTIONS: Every short-term rental agreement for a Unit shall specifically provide (or, if it does not, shall be automatically deemed to provide) that a material condition of the lease shall be the tenant's full compliance with the covenants, terms, conditions and restrictions of this Declaration (and all Exhibits hereto) and with any and all rules and regulations adopted by the Association from time to time (before or after the execution of the rental agreement and/or any modifications, renewals or extensions of same). The Unit Owner and the Property Manager will be jointly and severally liable to the Association for any amount which is required by the Association to repair any damage to the Common Elements resulting from acts or omissions of the renter (as determined in the sole discretion of the Association), to pay for any fines, fees or citations resulting from a nuisance or issued by any authority having jurisdiction over the Association, and to pay any claim for injury or damage to property caused by the negligence of the renter.

7. MISCELLANEOUS: In any action between Property Manager and/or Unit Owner and/or the Association to enforce the terms of this Agreement, the prevailing party shall be entitled to reasonable attorneys' fees and costs from the non-prevailing party. This Agreement shall be governed by the laws of the State of Florida. Proper venue for any action shall be in Miami-Dade County, Florida. The parties shall not transfer or assign this Agreement or any part hereof or any of its rights or obligations hereunder without the prior written consent of the Association. The foregoing notwithstanding, the Parties acknowledge that the Unit Owner hereby assigns its right of termination under this Agreement to the Association. The purpose of this provision is to allow the Association, in addition to Unit Owner, to terminate this Agreement at its discretion, with or without cause. The assignment referred to herein shall only take effect when the Association elects to take such assignment. This Agreement may be executed in any number of counterparts which together shall constitute the contract of the parties. The paragraph headings herein contained are for purposes of identification only and shall not be considered in construing this Agreement. The waiver by either part of a default or breach hereunder shall not be construed as a waiver of any other default or breach hereunder by such party. This Agreement constitutes the entire agreement of the parties hereto with respect to the subject matter hereof. This Agreement may only be amended or modified by a written instrument executed by Property Manager and Unit Owner. If any term, covenant, or condition of this Agreement of the application thereof to any person or circumstance shall, to any extent, be held to be invalid or unenforceable, the remainder of the Agreement, or the application of such term, covenant, or condition to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby, and each term, covenant, or condition of this Agreement shall be valid and shall be enforced to the fullest extent permitted by law.

IN WITNESS WHEREOF, the parties have executed this Agreement effective as of the day and year first above written.

UNIT OWNER:

X Wilson Cardona dotloop verified
02/27/26 5:31 PM COT
638F-CWPF-2H4T-1N0v

Print Name: Wilson Cardona

PROPERTY MANAGER:

X Jose Londono & Sebastian Barreneche dotloop verified
03/02/26 9:16 AM COT
IS4D-06SH-1GJL-95TY

Print Name: WHOST

Receipt of this agreement is acknowledged by the Association this ____ day of _____, 2023.

THE CLUB AT BISCAYNE PLAZA CONDO. ASSN., INC.:

X _____

Print Name: _____

Title: _____